

Chennai Municipal Residential Building Laws

A Comprehensive Knowledge Base for Civic RAG Systems

Tamil Nadu Combined Development & Building Rules (TNCDBR) 2019
CMDA Regulations | GCC Bylaws | 2024–2025 Amendments

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Sources: CMDA, GCC, TNCDBR 2019, Tamil Nadu Government Gazette

1. Introduction and Legal Framework

Building construction in Chennai and the Chennai Metropolitan Area (CMA) is governed by a combination of central and state legislation. The primary governing document is the **Tamil Nadu Combined Development and Building Rules (TNCDBR) 2019**, notified vide G.O.(MS) No.18, Municipal Administration and Water Supply Department, dated 04.02.2019. This replaced the earlier fragmented building rules applicable to different local bodies.

The Tamil Nadu Combined Development and Building Rules 2019 (TNCDBR 2019) is the single unified building regulation applicable to all Corporations, Municipalities, Town Panchayats, and Village Panchayats across Tamil Nadu. All residential construction must comply with these rules along with any amendments issued by the state government.

1.1 Governing Authorities

Authority	Full Name	Jurisdiction
CMDA	Chennai Metropolitan Development Authority	Master planning and development control for Chennai Metropolitan Area
GCC	Greater Chennai Corporation	Building permits and enforcement within Chennai city limits
DTCP	Directorate of Town and Country Planning	Planning permissions outside CMDA area across Tamil Nadu
TANGEDCO	Tamil Nadu Generation & Distribution Corporation	Electrical service connections — requires completion certificate
CMWSSB	Chennai Metro Water & Sewerage Board	Water and sewage connections — requires occupancy certificate

1.2 Key legislation

- Tamil Nadu Combined Development and Building Rules, 2019 (TNCDBR 2019)
- Tamil Nadu Town and Country Planning Act, 1971 (TTCP Act)
- Chennai Metropolitan Area Groundwater (Regulation) Act, 1987
- Tamil Nadu Apartment Ownership Act, 1994 (amended 2022)
- National Building Code of India, 2016 (NBC 2016)
- Tamil Nadu Energy Conservation Building Code (TNECBC) — effective July 2024
- Environment Protection Act, 1986 — for buildings with built-up area above 20,000 sq.m

2. Plot and Land Regulations

Before any residential construction can begin, the plot itself must comply with minimum size, frontage, and road-width requirements as specified under TNCD BR 2019 and CMDA Development Regulations.

2.1 Minimum plot requirements for residential buildings

Parameter	Requirement	Notes
Minimum plot extent	80 square metres (sq.m)	Approx. 860 sq.ft
Minimum plot frontage	6 metres	Width of plot touching the road
Minimum road width (general)	4.8 metres	For interior residential plots
Minimum road width (standard)	7.2 metres	For regular residential buildings
Maximum plot coverage	75%	For plots up to 300 sq.m
Maximum plot coverage (larger)	As per DR table	Varies with plot size and zone

2.2 Use zone classification under Chennai Master Plan

The Chennai Master Plan classifies all lands in the metropolitan area into the following use zones. Residential construction is primarily permitted in residential zones:

- **Primary Residential Zone (R1):** Only residential use permitted. No commercial activity allowed.
- **Mixed Residential Zone (R2):** Residential use with limited neighbourhood commercial activities.
- **Commercial Zone (C):** Residential use allowed above ground floor.
- **Industrial Zone (I):** Residential use restricted — only for caretaker quarters.
- **Institutional Zone (In):** Educational, medical, and government buildings.
- **Open Space / Recreation Zone (OS):** No permanent construction permitted.

2.3 Land use change

To construct a residential building on land classified under a non-residential zone, the owner must apply for a **Change of Land Use (CLU)** approval from CMDA before submitting the building plan. Constructions without CLU approval are liable for demolition under Section 56 of the TTCP Act, 1971.

3. Building Dimensions, Height, and FSI

3.1 Floor Space Index (FSI)

Floor Space Index (FSI), also called Floor Area Ratio (FAR), is the ratio of the total built-up area to the plot area. It controls the density of construction.

Zone / Condition	Basic FSI	Premium FSI	Remarks
Residential — plot up to 300 sq.m	1.62	—	Standard residential plot
Residential — road width 9m	1.62	—	No premium FSI below 9m road
Residential — road width 12m	1.62	+25%	Premium FSI = 0.41 additional
Residential — road width 18m	1.62	+50%	Premium FSI = 0.81 additional
Residential — road width above 18m	1.62	+75%	Premium FSI = 1.22 additional
High-rise residential (above 18m height)	2.00	As per CMDA	Special application required

Premium FSI is charged at a rate fixed by CMDA. As of 2024, the premium FSI charges vary from Rs.500 to Rs.2,000 per sq.ft of additional FSI depending on the zone and road width. Premium FSI must be applied for separately before plan approval.

3.2 Building height restrictions

Building Type	Maximum Height	Max Floors	Notes
Individual residential (self-certification zone)	7 metres	G+1	Plot up to 2,500 sq.ft, built-up up to 3,500 sq.ft
Low-rise residential	9 metres	Stilt+2 or G+2	Road width min. 7.2m required
Medium-rise residential	14 metres	G+4 approx.	Fire NOC not mandatory below 15m
High-rise residential	Above 15 metres	G+5 and above	Fire NOC mandatory from TNFRS
High-rise (special zone)	No fixed limit	As per CMDA approval	Subject to aviation clearance

Note: Heights are measured from the average ground level of the plot to the top of the parapet wall. Staircase rooms, lift machine rooms, and water tanks are exempted from height calculation subject to a maximum of 3 metres above the terrace level.

3.3 Floor height requirements

- **Habitable rooms:** Minimum clear height of 2.75 metres (9 feet)
- **Kitchen:** Minimum clear height of 2.75 metres
- **Bathroom and WC:** Minimum clear height of 2.2 metres
- **Staircase:** Minimum headroom of 2.1 metres
- **Basement (if permitted):** Minimum height of 2.5 metres, max height above ground 0.9m
- **Mezzanine floor:** Maximum height of 2.2 metres — counted in FSI

4. Setback Rules

Setbacks are the minimum distances that must be maintained between the building and the plot boundaries. They ensure light, ventilation, and access around buildings. Setback rules under TNCD BR 2019 depend on building height, plot size, and road width.

4.1 Front setback (from road / street alignment)

Abutting Road Width	Minimum Front Setback
Up to 7.2 metres	1.5 metres
7.2 to 10 metres	2.0 metres
10 to 18 metres	3.0 metres
18 to 30 metres	4.5 metres
Above 30 metres	6.0 metres

4.2 Side and rear setback

Plot Width / Building Height	Side Setback	Rear Setback
Plot width up to 6m	Nil (zero)	1.5 metres
Plot width 6m to 9m	0.6 metres	1.5 metres
Plot width 9m to 12m	1.0 metres	1.5 metres
Plot width above 12m	1.5 metres	1.5 metres
Buildings above 7m height	Min. 1.5m	Min. 1.5 metres
Buildings above 14m (high-rise)	3.0 metres	3.0 metres

Setback violations are the most common reason for building plan rejection and demolition orders. Constructions encroaching into setback areas cannot receive electricity or water connections and are liable for demolition under Section 56 of the TTCP Act.

4.3 Exemptions from setback calculation

- Projections like chajjas (sunshades) up to 0.6m are permitted into setback areas
- Porticos may project 1.5m into front setback if road width is above 9m
- Staircase projections up to 0.9m are allowed in rear setback
- Compound walls up to 1.5m height do not count toward setback
- Underground sumps and rainwater harvesting pits are exempt from setback rules

5. Building Permit and Approval Process

All residential constructions in Chennai require a valid Building Permit (BP) issued by the Greater Chennai Corporation (GCC) or CMDA before commencement of work. Commencing construction without a permit is a criminal offence under the TTCP Act.

5.1 Self-certification scheme (2024–2025 update — key scheme for small homes)

The Self-Certification Scheme allows individual homeowners to get an instant online building permit without waiting for government scrutiny. This applies to: Plot size up to 2,500 sq.ft (232 sq.m), Built-up area up to 3,500 sq.ft (325 sq.m), Height up to 7 metres (G+1 floor only). The permit is issued as a QR-code e-certificate instantly, valid for 5 years (extendable by 3 years). No scrutiny fees or infrastructure charges apply.

5.2 Documents required for building permit application

Document	Purpose
Land document (Patta / Sale Deed)	Proof of land ownership
Encumbrance Certificate (EC)	Confirms no pending loans on the land
Topo sketch / location plan	Shows plot location relative to roads
Site plan (1:500 scale)	Shows plot dimensions and setbacks
Building plan (1:100 scale)	Floor plans, elevations, sections
Structural drawings + calculations	For buildings above G+1 or 100 sq.m
Professional certificate	Signed by registered architect / engineer
Soil test report	Required for buildings above 3 floors
Property tax receipt (latest)	Confirms no dues to GCC / municipality
Photograph of plot	Recent photos of vacant / existing site

5.3 Approval timeline (as per 2024 deemed approval rules)

- **Self-certification scheme:** Instant — e-certificate issued on submission
- **Low-rise buildings (up to G+2):** 15 working days
- **Medium-rise buildings (G+3 to G+5):** 30 working days
- **High-rise buildings (above 15m):** 45 working days
- **Deemed approval:** If no response from authority within the prescribed time, approval is considered granted (introduced in 2024 amendments)

6. Parking Requirements

Adequate parking space must be provided within the plot for all residential buildings. Failure to provide mandatory parking will result in plan rejection. Parking areas cannot be converted to habitable use after construction.

Residential Unit Type	Minimum Parking Spaces Required
Plot area up to 75 sq.m	No mandatory parking
Plot area 75 to 150 sq.m	1 car space (2.5m x 5m)
Plot area 150 to 300 sq.m	2 car spaces
Flat / apartment — 1 BHK	0.5 spaces per unit (1 per 2 units)
Flat / apartment — 2 BHK	1 space per unit
Flat / apartment — 3 BHK and above	1.5 spaces per unit
Visitor parking	1 space per 10 units (mandatory for >20 units)

Parking dimensions: Each car parking space must be minimum 2.5m x 5.0m. Aisle width for two-way traffic: minimum 5.5m. Ramp slope: maximum 1:8 (12.5%).

7. Environmental and Mandatory Requirements

7.1 Rainwater harvesting — mandatory for all buildings

Rainwater Harvesting (RWH) is MANDATORY for ALL buildings in Chennai under the Chennai Metropolitan Area Groundwater (Regulation) Act, 1987 as amended. No building plan will be approved or service connections granted without proof of RWH installation. This applies to all new constructions regardless of size.

Building Type	RWH Requirement
Individual houses up to 100 sq.m built-up	1 recharge pit of min. 1m x 1m x 2m depth
Individual houses 100–300 sq.m	2 recharge pits or 1 recharge well
Apartments — 4 to 12 units	1 sump + recharge well system
Apartments — above 12 units	Full RWH system with rooftop collection + storage
Commercial buildings	RWH for 100% of rooftop area + green buffer

7.2 Open Space Reservation (OSR)

- For layouts / plots above 10,000 sq.ft (929 sq.m), 10% of total area must be reserved as open space
- OSR land must be handed over to the local body before building plan approval
- OSR land cannot be built upon — only landscaping and public amenities permitted
- Failure to provide OSR renders the layout illegal — individual plots in such layouts cannot get building permits

7.3 Sewage treatment plant (STP) requirements

- **Residential apartments above 20 units:** Mandatory STP with minimum 100% treatment capacity
- **Buildings generating more than 10,000 litres/day sewage:** STP mandatory
- STP must meet Tamil Nadu Pollution Control Board (TNPCB) discharge standards
- STP drawings must be submitted with building plan for large apartments

7.4 Energy conservation (TNECBC — effective July 2024)

The Tamil Nadu Energy Conservation Building Code (TNECBC) is now mandatory for:

- All new commercial buildings regardless of size
- Residential buildings with built-up area above 500 sq.m
- All government buildings

Compliance requires a certified energy auditor to certify the building plans before plan approval. Requirements include insulated roofs, energy-efficient windows (SHGC standards), LED lighting provisions, and solar-ready infrastructure.

8. Completion Certificate and Occupancy

After construction is complete, the owner must obtain a **Completion Certificate (CC)** and **Occupancy Certificate (OC)** before occupying the building or applying for service connections (electricity, water, sewage).

8.1 Exemptions from completion certificate (2024 amendment)

Under the March 2024 amendment to TNCD BR 2019 (Rule 20), the requirement to obtain a completion certificate has been removed for: Residential buildings up to 14 metres in height, with not more than 8 dwelling units OR occupying a maximum area of 750 sq.m. Previously this exemption applied only to buildings up to 12m with 3 units. These buildings can now directly apply for service connections.

8.2 Buildings that still require completion certificate

- All buildings above 14 metres in height
- Residential buildings with more than 8 dwelling units
- Residential buildings with built-up area above 750 sq.m
- All commercial, industrial, and institutional buildings
- Any building where structural changes were made during construction

8.3 Occupancy certificate (OC) process

Step	Action	Authority
1	Submit completion drawings (as-built) + photographs	GCC / CMDA
2	Fire safety inspection (for buildings above 15m)	TNFRS
3	Structural stability certificate from engineer	GCC
4	RWH inspection certificate	GCC / TWAD
5	STP commissioning report (if applicable)	TNPCB
6	Lift inspection certificate (if applicable)	Electrical Inspectorate
7	OC issued by GCC / CMDA	GCC / CMDA

9. Violations and Penalties

Unauthorised construction — construction without valid building permit, exceeding sanctioned plan, or violating setback/height norms — is a criminal offence. Penalties include demolition orders, fines, imprisonment, and denial of service connections. The GCC and CMDA conduct regular inspections.

Violation	Penalty / Consequence
Construction without building permit	Demolition order + fine up to Rs.5,000/day of violation under TTCP Act Sec 56
Exceeding sanctioned FSI	Demolition of excess construction OR compounding fee (if compoundable)
Setback violation	Demolition of encroaching structure — NOT compoundable in most cases
Height violation	Demolition of excess floors / structure above approved height
No rainwater harvesting	Building plan rejected; service connections denied
No occupancy certificate	No electricity/water connection; building cannot be legally occupied
Change of use without permission	Sealing of premises + fine + legal action under TTCP Act
Illegal sub-division of plot	Layout declared illegal; individual plots cannot get building permits

9.1 Compoundable vs non-compoundable violations

Some violations can be **compounded** (regularised by paying a fee) while others result in mandatory demolition. As a general rule:

- **Compoundable (can be regularised):** Minor FSI excess (up to 5%), minor height excess in non-critical areas, small room additions within setback if plot is above threshold size
- **Non-compoundable (mandatory demolition):** Setback violations, construction on OSR land, construction in prohibited zones (e.g. coastal zone, heritage precincts), violations affecting structural safety

10. Key 2024–2025 Amendments Summary

The Tamil Nadu government issued several important amendments to TNCDBR 2019 in 2024 and 2025. These are the most recent rules and override earlier provisions where there is a conflict.

Amendment	Effective Date	Change
Self-certification scheme	2024	Instant online permit for G+1 homes up to 2,500 sq.ft plot, 3,500 sq.ft built-up
Engineer-signed plans	March 2024	Buildings up to 14m can now use registered engineers instead of architects
Completion certificate exemption	March 2024	Residential buildings up to 14m, max 8 units, 750 sq.m exempt from CC
Security deposit exemption	March 2024	Non-high-rise residential buildings up to 14m, 8 units exempt from SD under R
Deemed approval	2024	If no decision within 30 days, building permit is deemed granted
TNECBC energy code	July 2024	Energy conservation building code mandatory for commercial and large residen
Apartment redevelopment	2022 (TN Apt Act)	Old apartments can be legally redeveloped with 2/3 owner consent
GO Ms No. 154 amendment	October 2025	Latest CMDA amendment — check cmdachennai.gov.in for full details

11. Quick Reference — Frequently Asked Questions

Q: Can I build a house without a building permit?

A: No. All residential constructions require a valid building permit issued by GCC or CMDA. Under the 2024 self-certification scheme, individual homes (G+1, up to 2500 sq.ft plot) can get an instant online permit, but a permit is still required.

Q: What is the minimum plot size to build a house in Chennai?

A: The minimum plot size is 80 square metres (approximately 861 sq.ft) with a minimum frontage (road-facing width) of 6 metres. Plots below this size cannot receive building permits.

Q: How much of my plot can I build on?

A: For plots up to 300 sq.m, you can cover up to 75% of the plot area (plot coverage). The total built-up area across all floors is limited by the FSI of 1.62 (meaning total built-up can be 1.62 times the plot area on a basic FSI).

Q: What is FSI and how many floors can I build?

A: FSI (Floor Space Index) is the ratio of total built-up area to plot area. At FSI 1.62 on a 100 sq.m plot, you can build up to 162 sq.m total. For a standard residential plot, this typically allows Ground + 1 floor (G+1) at 7 metres height, or Stilt + 2 floors at 9 metres.

Q: Do I need to leave space around my building?

A: Yes — these are called setbacks. Front setback starts from 1.5m (for narrow roads) to 6m (for wide roads above 30m). Side setback is typically 1 to 1.5m. Rear setback is minimum 1.5m. Buildings above 7m height have stricter setback rules.

Q: Is rainwater harvesting mandatory?

A: Yes. Rainwater harvesting is mandatory for ALL buildings in Chennai without exception. Building plans will not be approved and service connections (water, electricity) will not be given without proof of RWH installation.

Q: Can I convert my house to a shop or office?

A: Not automatically. Change of use requires specific approval from CMDA/GCC. In Primary Residential Zone (R1), commercial use is not permitted at all. In Mixed Residential Zone (R2), limited neighbourhood commercial use may be approved.

Q: What happens if I build without permission or violate the rules?

A: The GCC or CMDA can issue a demolition notice under Section 56 of the TTCP Act. You will also face fines of up to Rs.5,000 per day of violation. The building cannot receive electricity or water connections. Setback violations cannot be regularised — demolition is mandatory.

Q: How do I get electricity and water connection for my new house?

A: You need: (1) Valid Building Permit from GCC/CMDA, (2) Occupancy Certificate or Completion Certificate (except buildings exempted under the 2024 amendment), (3) Rainwater harvesting completion certificate, (4) Property tax registration. TANGEDCO and CMWSSB will verify these documents before giving connections.

Q: What is the deemed approval rule?

A: Under the 2024 amendment, if the GCC or CMDA does not respond to a building permit application within the prescribed time limit (30 days for most cases), the approval is deemed to have been granted. The applicant can then proceed with construction.

Q: Can I build above 4 floors in a residential area?

A: Buildings above 15 metres (approximately G+5) are classified as high-rise and require Fire NOC from Tamil Nadu Fire and Rescue Services, structural audit, additional setbacks of minimum 3 metres on all sides, and special CMDA approval. Buildings above 18 metres require lift installation.

Q: Do I need an architect or can an engineer sign my plans?

A: As of March 2024, buildings up to 14 metres in height (approximately G+4) can have plans prepared and signed by registered engineers. Only for buildings above 14m is a registered architect mandatory. This change reduced costs for small builders.

12. Official Sources and Further Reference

For the most current and legally binding versions of all rules, always refer to the official government sources listed below. This document is compiled for informational purposes for RAG/AI systems. For legal matters, consult the official gazettes and a qualified legal professional.

Authority	Website	What you can find there
CMDA	cmdachennai.gov.in	TNCDBR 2019 full text, all amendments, development regulations, master
GCC — Town Planning	chennaicorporation.gov.in	Building permit applications, bylaws, zoning maps for Chennai city
Online Planning Permission	onlineppa.tn.gov.in	Online building permit applications, self-certification scheme portal
Tamil Nadu Urban Tree	turbantree.tn.gov.in	TNCDBR 2019 full PDF download for all local bodies
India Code	indiacode.nic.in	All Tamil Nadu Acts in searchable PDF format
TNPCB	tnpcb.gov.in	Environmental clearances, STP standards, noise regulations
RTI Portal	rti.gov.in	Right to Information Act — to request official documents from CMDA/GCC